

23BBCV02069 23BBCV02069

County: los-angeles

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Case Number: 23BBCV02069 Hearing Date: July 31, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Reconsideration

Hearing Date: 7/31/26

CASE NO./NAME: 23BBCV02069 / Tutkhalyan v.

Los Angeles Metro. Transportation Authority, et al.

Moving Party: Defendant Los Angeles Metro.

Transportation Authority

Responding Party: Plaintiff Karen Tutkhalyan

Notice: Sufficient

Ruling: DENY

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and any party seeking argument should notify all other parties and the court by 4:00 p.m. on the court day before the hearing of the party's intention to argue as to this matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at

 or by telephone at (818) 260-8422.

Parties

must appear on all other matters scheduled for this case.

BACKGROUND

This case arises from a January 9, 2023, incident in which plaintiff Karen Tutkhalyan (Plaintiff), a passenger on a Los Angeles County Metropolitan Transportation Authority bus, alleges that the bus driver accelerated abruptly before Plaintiff had an opportunity to sit or stabilize himself, causing him to fall and suffer significant injuries. The complaint, filed September 8, 2023, alleges causes of action for negligence and strict liability against Defendant Los Angeles Metropolitan Transportation Authority (Defendant).

On June 29, 2026, Defendant filed the instant motion requesting the Court reconsider its June 12, 2026, Order granting Plaintiff's motion to compel the deposition of Defendant's Person Most Qualified (PMQ). On July 20, 2026, Plaintiff filed an opposition. On July 24, 2026, Defendant filed a reply.

LEGAL

STANDARD

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. The party making the application shall state by affidavit what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Code Civ. Proc. § 1008.)

The legislative intent was to restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered, and some valid reason for not offering it earlier. (See *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.)

A party seeking reconsideration of a prior order based on “new or different facts, circumstances or law” must provide a satisfactory explanation for failing to present the information at the first hearing, i.e., a showing of reasonable diligence. (*Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.)

DISCUSSION

Defendant moves

the court to reconsider and modify the Court's June 12, 2026, Order granting Plaintiff's renewed motion to compel further responses of Defendant's PMQ. (Mot., p. 2.) Defendant argues that the March 10, 2026, stipulation entered into by the parties extended subsequent discovery only to topics agreed to, these topics allegedly did not include producing PMQ in categories 5, 7, 9, or 19. (Mot., p. 7.) Defendant argues that these are the categories in which the Court ordered Defendant to produce their PMQ for further testimony on June 12, 2026. (Mot., p. 8.) Defendant argues that allowing Plaintiff to compel examination in these categories would effectively rewrite the parties' discovery agreement. (*Ibid.*) Thus, Defendant asks the Court to revoke the June 12, 2026, Order as to categories 5, 7, 9, and 19. (Mot., p. 9.)

In opposition,

Plaintiff argues that the Court already litigated this question in the June 12, 2026, Order. (Opp., p. 2.) Plaintiff argues that Defendant attempts to present a new argument upon a closer reading of a document already on record and that the motion presents no new or different facts. (*Ibid.*) Further, Plaintiff argues that the Court already found that Defendant agreed to produce their PMQ for the categories now in dispute. (Mot., p. 4.) Lastly, Plaintiff argues that Defendant's own conduct, in producing the PMQ pursuant to the June 12, 2026, Order, refutes their own motion. (Mot., p. 5.)

In reply,

Defendant argues that section 1008, which governs reconsideration, governs the parties not the Court's authority to revisit its own order. (Reply, p. 3.) Further, Defendant narrows the grounds for reconsideration to only Category 19. (Reply, p. 4.) Defendant also states that they have complied with the Order in dispute pending hearing, and that their compliance does not refute their motion. (Reply, p. 6.)

Here, the

applicable standard requires that a motion to reconsider be “based upon new or different facts, circumstances, or law.” (Code Civ. Proc. § 1008.) Further, the intent of the legislature was to “restrict motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered.” (Gilberd, *supra*, 32 Cal.App.4th at 1500.) Defendant brings the instant motion based on stipulations already considered in the June 12, 2026, Order. (See June 12, 2026, Minute Order, pp. 3-4.) Defendant presents no new facts or circumstances which would justify reconsideration. Thus, Defendant does not satisfy the requirements set forth under section 1008.

Accordingly, the motion is DENIED.

CONCLUSION

AND ORDER

Defendant Los Angeles Metro.

Transportation Authority’s motion for reconsideration is DENIED.

MOVING PARTY is to give notice.